

no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party.” (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.)

19. *Opendoor Property Trust I v. Zhang, et al*, Case No. LLTSB2400104
Motion for Summary Judgment Against All Occupants
8/11/26, 9:00 a.m., Dept. S-17

This matter was continued from July 14, 2026, to allow for the filing of exhibits

Tentative Ruling

The Court would **GRANT** summary judgment as to “All Unknown Occupants” consistent with the prior given service.

Case Summary

This is an unlawful detainer action. Plaintiff Opendoor asserts it is the owner of the at-issue property and that Defendant-Tenant failed to vacate after a five-day notice to vacate. As such, it filed an unlawful detainer action on October 2, 2024. Relevant here, a motion for summary judgment against Defendant Zhang was entered on May 21, 2026. That judgment is currently on appeal.

On June 6, 2026, Plaintiff sought to amend the judgment by *ex parte* to add “All Unknown Occupants,” stating that the Proof of Service on All Unknown Occupants was inadvertently not filed with the Court. On June 11, 2026, the Court denied that *ex parte* application but stated Plaintiff could bring a motion for summary judgment. This motion followed.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant’s favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court’s sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

Now before the Court is Plaintiff’s motion for summary judgment against “all occupants”.

The motion first came before the Court on July 14, 2026. At that time, the Court continued the motion because Plaintiff failed to attach the referenced exhibits. In addition, a proper Proof of Service of Summons related to All Unknown Occupants (POS) was not on file.

On July 14, 2026, Plaintiff filed a Declaration of Sandara DeVonne with the referenced exhibits attached. Given the prior lack of exhibits in the Court filing originally, the Court will inquire whether Plaintiff can demonstrate that all exhibits were properly served pursuant to the now-filed POS. Assuming proper service of the motion and all documents in support can be demonstrated, the Court opines as follows:

An order approving service by posting was approved by the Court on December 17, 2024. (DeVonne Decl., ¶¶5-6 Exh. B.) On July 15, 2026, Plaintiff filed a POS signed by a registered process server under penalty of perjury showing service on All Unknown Occupants by posting on January 3, 2025, and mailing by certified mail on January 10, 2025. A Prejudgment Claim of Right of Possession is listed as one of the documents included with the service. (DeVonne Decl., Exh. A.) Service on All Unknown Occupants occurred at the same time as service on Defendant Zhang. (DeVonne Decl., Exh. C.) Service was in compliance with Code of Civil Procedure section 415.46.

Service of a section 415.46 Prejudgment Claim of Right to Possession form effectively forces occupants to elect at the outset of the litigation to be added as defendants or waive the right to object to execution. Here, no occupant filed a Prejudgment Claim of Right to Possession. (DeVonne Decl., ¶11.)

A Prejudgment Claim ensures enforceability of the writ against occupants not named as defendants in the complaint and bars any occupant's right to object to eviction by a post-judgment claim of right of possession. (Code Civ. Proc., §§ 1174.3(a); 415.46(e)(1); & 715.020(d).)

In light of service being demonstrated on All Unknown Occupants, which included service of a Prejudgment Claim of Right to Possession the Court would incorporate the factual findings from its previous ruling as to Defendant and would, likewise, grant summary judgment as to "All Unknown Occupants."

18. *Pierce, et al, v. Quality Drive Away, Inc., et al*, CIVSB2313410
Motion for Preliminary Approval of Class Action Settlement
8/11/26, 1:30 p.m., Dept. S17

Tentative Ruling

The Court would **GRANT** the motion for preliminary approval. Please note the highlighted sentences *infra* that set forth items that must be addressed prior to final approval.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery